

1.

CASE #	CASE NAME	HEARING NAME
CVME2508166	TIM LINCOLN, TRUSTEE OF THE REVOCABLE LIVING TRUST OF CHARLES DUNN VS NICKLAS	MOTION TO APPOINT RECEIVER

Tentative Ruling: Motion is denied. Under Code of Civil Procedure section 564, subdivision (b), the court in which an action or proceeding is pending may appoint a receiver in the listed categories of cases. Plaintiff does not specify which of the categories under 564(b) applies to the motion but appears to be relying on subdivision (b)(1) of section 564 which provides: “In an action ... by a creditor to subject any property or fund to the creditor’s claim ... on the application of the plaintiff ... where it is shown that the property or fund is in danger of being lost, removed, or materially injured.” (Code Civ. Proc., § 564(b)(1).) Section 564(b) also contains a “catch-all” category in which relief for an appointment of receiver may be granted “[i]n all other cases where necessary to preserve the property or rights of any party.” (Code Civ. Proc., § 564(b) (9).) Plaintiff fails to make the showing necessary under either of the categories.

First, section 564(b)(1) does not apply to this case which is not an action brought by a creditor “to subject any property or fund to the creditor’s claim.” (Code Civ. Proc., § 564(b)(1).) This is an action seeking equitable reliefs to quiet title and to declare a deed of trust as void. Also, Plaintiff has not made a sufficient showing that the property, or any future sale proceeds that may result from the sale of the property, are in danger of being lost, removed, or materially injured. There is no evidence presented by Plaintiff that the property is in danger of being lost, remove, or injured by any actions taken by Defendants. Also, there is no evidence put forth by Plaintiff showing that the Property is capable of being sold without Defendants’ cooperation and consent to release the deed of trust to clear title of any encumbrance to be marketable to any potential buyers to allow the sale move forward and Defendants to claim against the proceeds should this case result in a judgment in their favor. Hence, the practical value of appointing a receiver to take custody of sales proceeds at this juncture is unclear. For this reason, the motion lacks merit.

2.

CASE #	CASE NAME	HEARING NAME
CVME2509401	THOMAS VS ALEXANDER	MOTION TO EXPUNGE LIS PENDENS

Tentative Ruling: Motion is Granted. Sanctions awarded to Defendant in the amount of \$960.00. A lis pendens/notice of pendency of action gives constructive notice of a pending lawsuit affecting title to described real property and is recorded in the office of the county recorder where land is located. (See, Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2022), § 9:421.) Anyone who acquires an interest in the described real property (purchaser, mortgagee, etc.) takes that interest subject to any judgment that may be entered in the lawsuit. The practical effect is to cloud the property’s title and prevent its transfer until the litigation is resolved or the lis pendens is expunged or released. (*Malcolm v. Superior Court* (1981) 29 Cal.3d 518, 523; *Bishop Creek Lodge v. Scira* (1996) 46 Cal.App.4th 1721, 1733.) Recordation of a

lis pendens is permitted in any action in which the claimant has a “real property claim.” (C.C.P. § 405.1.) A “real property claim” is a cause of action which would, if meritorious, “affect title to, or the right to possession of, specific real property” or the “use of an easement.” (C.C.P. § 405.4.)

A lis pendens may be ordered expunged on grounds, *inter alia*, that the complaint in the action does not contain a “real property claim” or that the plaintiff cannot establish “probable validity” of the claim by a “preponderance of the evidence.” (C.C.P. §§ 405.31-405.32.) respectively.) In a motion to expunge a notice of lis pendens, the claimant who filed the lis pendens has the burden of proof. (C.C.P. §§ 405.30, 405.32.) Thus, that claimant, in opposing the motion to expunge the lis pendens, has the burden of proof and must demonstrate the following: (1) the action affects title to or right of possession of the real property described in the notice; (2) in so far as the said notice is concerned, the party recording the notice has commenced the action for a proper purpose and in good faith; and (3) the probable validity of the real property claim by a preponderance of the evidence. (*Hunting World, Inc. v. Superior Court* (1994) 22 Cal.App.4th 67, 70; see also, C.C.P. §§ 405.31-405.32.) While a motion to expunge under C.C.P. § 405.31 involves only a review of the adequacy of the pleading and normally should not involve evidence from either side [*BGJ Associates v. Superior Court* (2000) 75 Cal.App.4th 952, 957-58], a motion to expunge under C.C.P. § 405.32 requires the judicial examination of factual evidence. (See *Kirkeby v. Superior Court* 33 Cal.4th 642, 649-50.) Expungement of an improper lis pendens is mandatory. (C.C.P. §§ 405.31-405.32; Weil & Brown, *supra*, §9:437; *Amalgamated Bank v. Superior Court* (2007) 149 Cal.App.4th 1003, 1012.)

Whether the Complaint contains a real property claim is determined by the allegations of the complaint, without reference to independent evidence. (*Urez Corp. v. Superior Court* (1987) 190 Cal.App.3d 1141, 1149 [decided under former law, but principle still valid].) A real property claim can be any cause of action which, if meritorious, would affect title to, or the right to possession of specific real property. (C.C.P. § 405.4.)

In the Complaint, Plaintiff seeks an equitable lien and reimbursement for the expenses she allegedly paid toward the Property. (Complaint at ¶¶ 25, 33, 35.) Defendant correctly argues that Plaintiff’s claim for an equitable lien does not constitute a real property claim. (*Campbell v. Superior Court* (2005) 132 Cal.App.4th 904, 918-919 [allowing a party to record a lis pendens only “to freeze the real property as a res from which to satisfy a money judgment” is inconsistent with the history and purpose of lis pendens statutes]; *BGJ Assocs. v. Sup. Ct.* (1999) 75 Cal.App.4th 952, 971-972 [claims that combine theories of liability for money damages and a constructive trust do not support a lis pendens]; *Shoker v. Superior Ct. of Alameda County* (2022) 81 Cal.App.5th 271, 279 [“equitable remedies, even if colorable, will not support a lis pendens if, ultimately, those allegations act only as a collateral means to collect money damages”].) Thus, Plaintiff does not assert any real property claim. Accordingly, the motion should be granted, and the lis pendens should be expunged.

Additionally, Defendant should be awarded attorney's fees and costs in the reduced but reasonable amount of \$960. C.C.P. § 405.38 provides: “[t]he court shall direct that the party prevailing on any motion under this chapter be awarded the reasonable attorney’s fees and costs of making or opposing the motion unless the court finds that the other

party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust." In the present case, Defendant is the prevailing party, and Plaintiff had no justification in opposing the motion.

3.

CASE #	CASE NAME	HEARING NAME
CVME2512887	HOWELL VS VCA ANIMAL HOSPITALS INC	DEMURRER/MOTION TO STRIKE

Tentative Ruling: Demurrer and Motion to Strike continued to October 29, 2026 8:30 am M301. The hearing on the Demurrer and Motion to Strike should be continued to allow Defendants an opportunity to satisfy their statutory obligation to meet and confer in accordance with CCP §§ 431.41 and 435.5 to file an appropriate declarations. The Declaration of Kimberly B. Pinkerton ("Pinkerton Decl.") states that on several occasions prior to filing the instant Demurrer [and Motion to Strike] to Plaintiffs' First Amended Complaint, she reached out via telephone to Plaintiff Nancy Howell in an attempt to Meet and Confer in connection with various deficiencies identified relating to Plaintiffs' First Amended Complaint. She left voicemails identifying herself and specifying the intent of her telephone calls, which was to Meet and Confer regarding the deficiencies relating to Plaintiffs' First Amended Complaint. (Pinkerton Decl., ¶12.) She was unable to reach Plaintiff Nancy Howell via telephone and was, therefore, unable to Meet and Confer regarding the deficiencies identified in the First Amended Complaint. (Pinkerton Decl., ¶13.) Accordingly, the hearing on the Demurrer and Motion to Strike is continued to 10-29-26. Plaintiff is ordered to meet and confer with Defendants by telephone, video conference or in person for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the Demurrer and Motion to Strike. As part of the meet and confer process, Defendants shall identify with legal support the basis of the alleged deficiencies in the First Amended Complaint. Plaintiff shall provide legal support for his position that the pleading is legally sufficient or, in the alternative, how the First Amended Complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendants shall 10 days before the continued hearing date set forth above do one of the following:

vacate the hearing on the Demurrer and Motion to Strike;
file with the court a declaration stating that the parties have agreed that Plaintiff will file a Second Amended Complaint before the date set forth above; or
file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the Demurrer and Motion to Strike that the parties were unable to resolve.

The court will not accept further briefing.